

HOUSE No. 5634

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, July 31, 2026.

The committee on Ways and Means, to whom was referred the Senate Bill authorizing the Buzzards Bay Water District to convey non-exclusive easements over a certain parcel of land (Senate, No. 3188), reports recommending that the same ought to pass with an amendment striking out all after the enacting clause and inserting in place thereof the text contained in House document numbered 5634.

For the committee,

AARON MICHLEWITZ.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

By striking out all after the enacting clause and inserting in place thereof the following:—

1 SECTION 1. (a) Notwithstanding any general or special law to the contrary, the Buzzards
2 Bay Water District, acting by and through its board of water commissioners, may convey to
3 Algonquin Gas Transmission, LLC, certain non-exclusive permanent and temporary easements
4 for the installation, operation, maintenance, repair and replacement of natural gas pipelines and
5 related appurtenances and an access road under and through portions of property described in
6 subsection (b).

7 (b) The property on which the easements may be granted was taken by the Buzzards Bay
8 Water District for the purpose of providing additional water supply, is located at Bournedale
9 road, in the town of Bourne, shown as assessor's parcel 10-52-0 on the assessor's map of the
10 town of Bourne and described in an order of taking recorded with the Barnstable county registry
11 of deeds in book 2751, page 145. The easements that may be granted on the property are more
12 particularly shown as "Proposed 50' Wide Permanent Easement" and "PAR-20" on a plan
13 entitled "Plan of Land Buzzards Bay Water District Bournedale Road Bourne, Massachusetts",
14 dated April 27, 2026, prepared by VHB, as said plan may be amended, a copy of which plan is
15 on file with the clerk of the Buzzards Bay Water District. The easements shown on the plan shall
16 be for the benefit of Algonquin Gas Transmission, LLC.

17 SECTION 2. As consideration for the conveyance described in section 1, Algonquin Gas
18 Transmission, LLC shall provide funds equal to the fair market value or value in use, whichever
19 is greater, as determined by an independent appraisal, of the property interests described in
20 subsection (b) of section 1. The Buzzards Bay Water District shall deposit into and hold said
21 funds in a segregated account dedicated solely for the acquisition and maintenance of land for
22 the purposes of Article 97 of the Amendments to the Constitution of the Commonwealth and
23 shall use such monies to acquire or improve land or an interest in land for the purposes of Article
24 97 not more than 3 years after the date of such conveyance.

25 SECTION 3. This act shall take effect upon its passage.